

Andhra Pradesh Dotted Lands (Updation in Re-settlement Register) Act, 2017

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State of Andhra Pradesh - Act

Andhra Pradesh Dotted Lands (Updation in Re-settlement Register) Act, 2017

ANDHRA PRADESH

India

Andhra Pradesh Dotted Lands (Updation in Re-settlement Register) Act, 2017

Act 10 of 2017

Published on 1 May 2017

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Andhra Pradesh Dotted Lands (Updation in Re-settlement Register) Act, 2017

(Act

No. 10 of 2017

)

[Dated 1.5.2017.]

An act to update Re-settlement register in respect of survey numbers against which dots have been placed, also called dotted lands and to provide for matters connected therewith and Incidental thereto.

Be, it enacted by the Legislature of State of Andhra Pradesh in the Sixty-eighth year of republic of India as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh Dotted Lands (Updation in Re-settlement Register) Act, 2017.

(2)

It shall extend to the whole of the State of Andhra Pradesh. commencement.

(3)

It shall come into force on such date as the Government may by notification in the Andhra Pradesh Gazette, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Documents" means registered documents, entries in Register of holdings maintained by the Registration department, 10 (1) account and Record of Rights maintained by the Revenue Department and order or decree of any court or competent authority;

(b)

"Dotted Lands" means the lands against which dots were marked in the pattadar column No. (16) of the Re-Settlement Register, during the Resurvey and Settlement operations,

(c)

"Government" means the Government of Andhra Pradesh;

(d)

"Notification" means the notification published in the Andhra Pradesh Gazette and the word 'notified' shall be construed accordingly;

(e)

"Person" means and includes individuals, institutions and organizations;

(f)

"Re-Settlement Register" means the Register prepared after completion of resurvey and settlement operations around the year 1916 AD. It is also called A - Register or Diglot.

3.

Updation of Re-Settlement Register.

- The Re-Settlement Register shall be updated by replacing the Dots in column No. (16) with appropriate entry as per section 4 in respect of Dotted Lands.

4.

Updation of Government Porombokes/Assigned/Alienated/Transferred Lands/Other Lands.

(1)

The entry in column No. (16) of Re-Settlement Register in respect of Dotted Lands which have entries of "P" in Column No.(5) and related remarks in column No.(17) which are found vacant and are not assigned or alienated or transferred or claimed by any person shall be replaced and updated by making an entry "Government Poramboke" in terms of the orders issued under section 7 or section 8 as the case may be.

(2)

The entry in column No. (16) of Re-Settlement Register in respect of Dotted Lands, which were assigned or alienated or transferred shall be replaced and updated by making an entry in the name of the assignee or alienee or transferee, as the case may be, in terms of the orders issued under Section 7 or section 8 as the case may be, and in column No. (17) of the resettlement Register the entry "Government Assigned or Alienated or Transferred" as the case may be shall be made.

(3)

The entry in column No. (16) of Re-Settlement Register in respect of Dotted Lands which are not covered under sub-sections(1) and (2) and are in possession of any person shall be replaced and updated by making an entry in the name of the person, in terms of the orders issued under section 7 or section 8 as the case may be.

Explanation. - Continuous possession for a period of twelve years or more prior to the commencement of this Act by a person (present claimant or his predecessor in interest), based on documents shall be sufficient for updation of his name in column No. (16) of Re-Settlement Register in respect of Dotted Lands covered under subsection (3).

5.

District Level Committee.

- A District Level Committee, consisting of District Collector as the Chairperson, Joint Collector, Sub-Collector or Revenue Divisional Officer as members and the Tahsildar as member-convener, shall be competent to hear and issue orders on the claims filed under this Act.

6.

Filing of claim.

(1)

For updation of column No. (16) of Re-Settlement Register in respect of Dotted Lands covered under sub-sections (1) and (2) of section 4, the Tahsildar shall file a claim, online in electronic form, before the District Level Committee.

(2)

For updation of column No.(16) of Re-Settlement Register in respect of Dotted Lands covered under sub-section (3) of section 4, the person in possession of the land shall file a claim, online in electronic form before the District Level Committee.

7.

Disposal of claim.

- The District Level Committee shall dispose of the claim on merits and pass a speaking order within six (6) months from the date of filing of claim.

8.

Appeal.

(1)

An appeal against the orders of the District Level Committee shall lie before the Chief Commissioner of Land Administration within ninety (90) days.

(2)

The decision of the Chief Commissioner of Land Administration on such appeal shall be final.

9.

Updation of Re-Settlement Register.

- The updation of Re-Settlement Register and consequent updation of other revenue records, including digitally maintained records, in pursuance of the orders passed under section 7 or section 8 as the case may be, shall be made within one (1) month.

10.

Deletion Under/Section 22A (1) of the Registration Act, 1908.

- The Dotted Lands updated in the name of a Person in column No. (16) of Re-Settlement Register shall be deleted from the list of prohibitory lands notified under Section 22-A (1) of the Registration Act, 1908 as amended by the Andhra Pradesh Act No. 19 of 2007 within one (1) month of the date of the order under section 7 or section 8 as the case may be.

11.

Protection for acting in good faith.

- No suit, prosecution or other legal proceedings shall lie against any officer of the Government for anything done in good faith under the provisions of this Act or the rules made there under.

12.

Power to remove difficulty.

- If any doubt or difficulty arises in giving effect to the provisions of this Act, the Government may, within a period of two (2) years from the date of commencement of this Act, by notification, make such provision as appears to it to be necessary or expedient for removing the difficulty.

13.

Power to make Rules.

(1)

The Government may, by notification, make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this Act shall, immediately after it is made, be laid before the Legislature of the State, if it is in

session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions and if, before the expiration of the session in which it is laid or the session immediately following the Legislature of the State agrees in making any modification in the rule or in the annulment of the rule, the rule shall from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled as the case may be, so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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